IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 205
CP CA-(CAA) 75/ND/2023

IN THE MATTER OF:
Axin Overseas Limited and Sarla Overseas Limited ... **Applicant/Petitioner**

Under Section: 230-232 of the Companies Act, 2013

Order delivered on 02.12.2025

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

MS. REENA SINHA PURI
HON'BLE MEMBER (T)

PRESENT:

For the Petitioner	**:**	Adv. Iswar Mohapatra
For the OL	**:**	Adv. Kartikeya Asthana
For the IT Dept.	**:**	Mr. Gaurav Gupta SSC, Mr. Shivendra Singh JSC, Mr. Yojit Prateek JSC, Adv. Prassant Kumar S

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

The report by the RD is on record. Ld. Counsel appearing for the Income Tax Department submitted that as far as the transferor company is concerned, they are liable to pay a certain amount of income tax, and regarding the transferee company, since certain proceedings are pending, the preparation of the report would take some time. As prayed by the Ld. Counsel for the Income Tax Department further two weeks' time is granted for filing the report. Ld. Counsel for the OL submitted that he has no objection to the approval of the scheme. The report filed on behalf of the RD is on record, and we will examine the same at the time of final disposal. List on **13.01.2026.**

It is made clear that if no report is filed by the Income Tax Department regarding the transferee company by the next date, we will take up the matter on the basis of pleadings and documents available on record. Let a copy of this order be sent to Principal CCIT, Delhi.

-Sd/-
(REENA SINHA PURI)
MEMBER (T)

-Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

Poonam/Anant